

Tehri Girders Ltd. v. M.D., P.V.V.N.L.

High Court of Judicature at Allahabad · Division Bench · 17 November 2018 · Writ-C No. 49978 of 2008 · **Writ dismissed following Dev Prayag on additional security and para 4.20.**

HEADNOTE

A writ attacking an additional-security demand and clause (1) of para 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires s.47(5) of the Electricity Act, 2003 is dismissed in terms of Dev Prayag Paper Mill (21.3.2017), counsel having invited a like order though that judgment was pending in the Supreme Court.

FACTUAL SUMMARY

Tehri Girders Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security for electricity supply, warning of action if unpaid in time. It also attacked clause (1) of paragraph 4.20 of the U.P. Electricity Supply Code, 2005 — the words 'as and when the distribution licence provides a choice to consumer to opt' — as ultra vires section 47(5) of the Electricity Act, 2003. Counsel accepted that identical writs had been dismissed on 21 March 2017 in Dev Prayag Paper Mill, then pending in the Supreme Court.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security; consumer choice to opt

HOLDING

A challenge to an additional-security demand and to clause (1) of para 4.20 of the Supply Code, 2005 (the words 'as and when the distribution licence provides a choice to consumer to opt') as ultra vires s.47(5) of the Electricity Act, 2003 is dismissed in terms of the Division Bench judgment dated 21.3.2017 in Writ-C No. 30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.), counsel having accepted that identical matters had already been dismissed and inviting a similar order. ¶ 1

PRINCIPLE TAGS

additional-security A writ attacking an additional-security demand and clause (1) of para 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires s.47(5) of the Electricity Act, 2003 is dismissed in terms of Dev Prayag Paper Mill (21.3.2017), counsel having invited a like order though that judgment was pending in the Supreme Court. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> Writ-C No. 30898 of 2016, decided 21.3.2017 (All)			order	Referred